

State of Ohio
STATE EMPLOYMENT RELATIONS BOARD
Statutory Fact Finding Procedures

	)	Cases No(s). 14-MED-03-0356
	)	(Patrol-rank and file)
Fraternal Order of Police Lodge 126	)	
Labor Organization	)	GREGORY P. SZUTER, FACT FINDER
	)	
and	)	
	)	Report and Recommendation
Austintown Township, Ohio	)	
Public Employer	)	
	)	

for the Labor Organization:

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Also present on behalf of the Union:

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Officer Allen Philips, Bargaining Committee
Officer Chris Pasvanis, Bargaining Committee
Det. Sgt. Shawn Hevener, Bargaining Committee

Also present on behalf of the Employer:

Michael Dockry, Township Administrator

Hearing Date: August 8, 2014
Hearing Locale: Austintown, Ohio
Report Issued : September 5, 2014

INTRODUCTION

The Austintown Township, Ohio, (herein also "Employer" or "Township") and Fraternal Order of Police Lodge 126, (herein "Union" or "Unit") are parties to this statutory fact finding procedure ("fact finding") under Ohio R. C. 4117 which is a form of advisory interest arbitration relating to establishing the terms for a collective bargaining agreement. This fact finding relates to the successor to a collective bargaining agreement ("CBA" or "Agreement") between the Union and the Employer for the term April 1, 2011 to March 31, 2014.

UNIT FOR BARGAINING

The Austintown Township provides law enforcement in the form of patrol and detective services for the Township by its full time officers. The Unit also includes Sergeants and Lieutenants. The Chief of Police is the only command officer not represented by the Union. The approximate number in the Unit is 39.

There are five other bargaining units among Township employees: (1) full time fire fighters (IAFF), and the road, park and vehicle service workers and part time firefighters represented by the Teamsters (IBT). These units have reached three year agreements with the Township that include 2014. The Township's non-exempt non-bargaining unit (NBU) employees are mostly clerical.

The parties met in negotiation for the terms of the CBA in accord with the law three times. In these meetings and at the hearing the parties entered tentative agreements (TA) resolving several of the issues. The undersigned was appointed Fact Finder (FF) in this dispute by the State Employment Relations Board (SERB) by letter of June 9, 2014 pursuant to R.C. 4117.14(C)(3). Matters still at impasse between the Township and the Union were submitted to advisory fact finding.

ISSUES

The written pre-hearing submissions showed a number of open issues. Taken from both parties' position statements as of the opening of hearing they were as follows with the disposition achieved during the hearing noted in brackets.

Issue 1	Article 7 Compensation , Section 1 Pay Ranges and Rates	{OPEN}
	Section 3, Detective Classification**	[new TA]
	Section 9. Detectives On Call**	{OPEN}
	Section ____ Field Training Officer Compensation.	
	(existing contract ref: Article 19, Miscellaneous, Section 7)	{OPEN}
	Section ____ Shift Differential **	{OPEN}
Issue 2	Article 11, Section 9. Life Insurance**	[withdrawn]
	Section ____ Eye Surgery*	[new TA]
	Section ____ ACA Affordability*	[new TA]
Issue 3	Article 13, Holidays, Section 1	[new TA]
Issue 4	Article 14, Vacations, Section 1 Entitlement*	[new TA]
	Section 2 Taking Leave*	[new TA]
	Section 3 Unused Vacation*	[new TA]
	Section 3 Prior Unused Vacation*	[new TA]
	Section ____ Vacation Carry over**	[new TA]
	Section ____ Unlimited Number of Vacations**	[new TA]
Issue 5	Article 15, Leave, Section 1. (B) Sick Leave	[withdrawn]
	Section 1. (D)(4) Sick Leave**	[new TA]
	Section 6. Personal Days**	[withdrawn]
	Section ____ Bereavement Leave**	[new TA]
Issue 6	Article 27 Duration, Section 1 Effective Dates	
	(April 1, 2014 through March 31, 2017)	[new TA]
Issue 7	Side Letter #4 HSA Contributions	[withdrawn]
Issue 8	Typographical: References to Auxiliary Officer**	[new TA]
Issue 9	Tentative Agreements: Adoption of previously agreed terms	
	and existing language not otherwise subject to proposals	[new TA]

Key: * Employer Proposal; ** Union Proposal. For those not marked by either, both had proposals.

Therefore this Fact Finder's Report addresses the remaining issues that continued at impasse.

1. Article 7 Compensation

- 1.1 Section 1. Pay Ranges and Rates.
- 1.2 Section 9. Detectives on Call.
- 1.3 Section ____ Field Training Officer (FTO).
(existing contract ref: Article 19, Miscellaneous, Section 7)
- 1.4 Section ____ Shift Differential.

HEARING

The evidentiary hearing commenced on August 8, 2014 at Austintown, Ohio, pursuant to the parties' stipulation in accord with O.A.C 4117-9-05(G). Pre-hearing statements of the issues were submitted by timely on August 7, 2014 in conformity with O.A.C 4117-9-05(F). The parties' stipulation is at **Appendix A**.

MEDIATION

The Ohio law encourages fact finders and conciliators to mediate disputes when practical. R.C. 4117.14 (C)(4)(f). After a good faith attempt to mediate the positions, the impasse was resolved as to all open issues except as set out in the report below.

CRITERIA

In compliance with Ohio Revised Code § 4117.14C(4)(e) and Ohio Administrative Code Rule 4117-9-05(J) and 4117-9-05(K), the Fact Finder considered the following in making the findings as contained in this report:

1. Past collective bargaining agreements between the parties;
2. Comparison of the unresolved issues relative to the employees in the bargaining unit with those issues related to other public and private employees doing comparable work, giving consideration to factors peculiar to the area and classification involved;
3. The interest and welfare of the public, the ability of the public Employer to finance and administer the issues proposed, and the effect of the adjustments on the normal standard of public service;
4. The lawful Authority of the public Employer;
5. Any stipulations of the parties;
6. Such other factors, not confined to those listed above, which are normally or traditionally taken into consideration in the determination of issues submitted to mutually agreed-upon dispute settlement procedures in the public service or in private employment.

For issues that became agreed by mediation and otherwise, the stipulations of the Parties, are the operative criteria.

REPORT AND RECOMMENDATION

ISSUE: 9.0 Tentative Agreements

CONTRACT SECTIONS: various

POSITIONS: The Employer: The Employer has agreed in separate documents to tentative agreements on several of the issues before the start of hearing and at the hearing on the merits. Others were mutually withdrawn.

POSITIONS: The Union: The Union has agreed in separate documents to tentative agreements on several of the issues before the start of hearing and at the hearing on the merits. Others were mutually withdrawn.

FACT FINDINGS : The Tentative Agreements reported are those identified at **Appendix B.**

ISSUE Tentative Agreements Recommendation: The Fact-Finder recommends those agreements and changes. Those open terms that were not subject to tentative agreements but that were placed before the Fact Finder are subject to fact finding herein. Those terms neither presented to the Fact Finder nor subject to tentative agreements continue as they appear in the expiring Agreement. For the reader's ease of reference the following index of the TA's is recited here:

- Article 3, Nondiscrimination, Sections 1 and 2
- Article 6, Seniority Section 3 Reduction in Force and Sections 4-5
- Article 7, Section 3, Detective Classification
- Article 8, Seniority, Section 1, Service Credit
- Article 9, Overtime, Section 9 (E) Call Out Procedure
- Article 11 Insurance, Sections 1 through 14
- Article 13, Holiday, Section 1
- Article 14, Vacations, Sections 1 through 7
- Article 15, Section 8 Bereavement Leave
- Article 27 Duration, Section 1 Effective Dates
- Side Letter #1 Wage Schedule Administration (omitted *in toto*)
- Side Letter #3 Lump Sum Compensation (omitted *in toto*)
- Side Letter #4 HSA Contributions (omitted *in toto*)
- Side Letter #__ Vacation Balances
- Typographical: References to Auxiliary Officer (cf. Article 6 and 8)

ISSUE: 1.0 Article 7, Compensation

Preserving the initial numbering, this issue consists of the changes to Article 7 which have contending open proposals and are listed below as sub-issues by Section of Article 7.

1.1. Pay Ranges and Rates

CONTRACT : Article 7 Compensation , Section 1 Pay Ranges and Rates

POSITIONS: The Employer's Proposal : (3.75% in 3 years overall)

2014 1.25% (retroactive 4/1/2014)
2015 1.25% (4/1/15)
2016 1.25% (4/1/16)

POSITIONS: The Union's Proposal: (9% in 3 years overall)

2014 3% (retroactive 4/1/2014)
2015 3% (4/1/15)
2016 3% (4/1/16)

FACT FINDING :

The Union's Argument

The Township was in financial distress during the negotiations for the existing contract three years ago. (2010) The Unit agreed to a three year freeze and agreed to a health saving account (HSA) to save the Employer cost on health care. In addition a tier system was instituted for wages. That CBA followed a one year contract extension with no increase. The effective freeze is four years.

During the past three years developments have occurred that will increase the revenue to the Township and the demand for service. A new racino (race track with casino betting) will begin operation in September 2014. The statutory arrangement for racinos is to return \$2.0 million to the local government and then \$500,000 annually. Aside from the racino there has been an increase in real estate development in the Township that will go unabated as new development occurs that will be stimulated by the racino in the form of hotels and restaurants and such commercial uses. In the MLS area defining Austintown there were 222 home sales in eight months of 2014, nearly 30 per month. Buildable lots are selling also many influenced by the potential of the racino development. This bodes property valuation increases and therefore Township revenue. The area has already recovered in terms of median real estate prices since 2008. (2000: 88k; 2009: 103k; 2013: 118k)

The primary comparable community providing police service is Boardman Township. The top patrolman rate at Boardman is \$61,000 and the top at Austintown is \$50,000. The Union proposal of 9% over three years brings the top rate to \$54,800 in 2016. The respective populations are close, 42,000 vs. 36,000 for Austintown. The major difference between the two townships is that Boardman is no longer growing and Austintown has already begun to grow and is on the cusp of a serious spurt.

The other represented employees have already agreed to their three year contract for 2.0% annually for three years, 6.0% over three years. Those units had three year not a four year freeze.

The Employer's Argument

The proposal of 1.25% annually for three years is in line with the SERB survey. The Unit's pay is above midrange of comparable jurisdictions. It is above median for the Warren-Youngstown metropolitan statistical area. The Union's proposal exceeds the wage increases provided to the

Township's five non-safety bargaining units. They received 2% per year for 3 years plus \$750 annual lump sum for the first year. The non-bargaining unit (NBU) employees are mostly non-exempt clerical which received 3% for one year with out years not now determined. Most members of the Unit are paid individually near the median family income of the residents served.

Boardman is not so comparable. The annual budget there exceeds Austintown's by \$10 million and is \$28 million annually. Austintown's carry over balance has been steadily declining. At the start of 2014 it was 2.0 million. That is two months expenses which is in line with standards.

A wage freeze is partly correct. In fact in lieu of wage increase the members received \$750 lump sum payment annually. That represents about 1.3% to 1.5% in the year received.

The Township is primarily funded by property taxes with some supplements from other sources. By law since 2011 local government funds (LGF) have been steadily reduced. In 2013 the Township received half the LGF that it received in 2011. Estate taxes were phased out by law and by 2013 entirely eliminated as supplemental source.

There will be some revenue from a racino development. The intent of the revenue sharing is not service reimbursement but replacement for the losses resulting from the cuts in the estate tax and the LGF. However, whether that occurs in the next contract term and to what extent is not resolved. The racino revenues are not resolved as to timing and the source. The responsible entity for payment has not been determined and only when that happens can the timing be worked out. Moreover, the amount is not what the Union presented. Half the receipts are already earmarked for capital improvements.

The Union's Rejoinder:

The lump sum payment was compensation for the increasing health care deductibles (ie out-of-pocket). The deductibles are already set for 2014. The tier structure folded in the most senior officers. There are only 9 officers at steps 1-6 (ie 6 years). The balance, ie 30, are at the top patrol step or higher. The carry over balance is 2.0 million this year. Ignoring that it will be higher in later years due to the ongoing development, the impact of the 3% proposal is a cost of \$60,000. With the tier system in place and with steady staffing, the freeze has saved the Township money. Total police wages have declined in the past four years. It is time that it is made up.

FF Analysis

The dispute in this issue is over the application of the Criteria #1 (past CBAs), #2 (external comparisons), and #6 (other factors: internal comparisons, and community demographic and development). No evidence was presented on #3 (budgets--revenues/expenses or service impairments/enhancements), or the #4 (lawful authority). As for #5 (stipulations) the material under the TA issues has provided background for the entire package.

The past CBAs were a one year extension in 2010 at zero increase followed by a three year 2011-13 Agreement with an effective 1.3-1.5% increase annually in the form of an annual \$750 lump sum payment. While not a true increase in the sense of continuing into future wages, it is more than zero. The Union claims it is an effective zero because it is offset by increased out of pocket costs to the employees in the insurance program. While true, that is a different method of costing an agreement and serves only to confuse the method being used, ie the annual increase cost to the Employer. Its value is impact not cost in the sense used.

Also part of the past Agreement was a tier system that allowed new hires to be compensated at a lower rate. This tier is unusual in that it folded in the higher tier employees into the top step. The result is that the Unit is top heavy in demographic sense and cost sense. There are only 15-17 officers in the three steps of under 3 years employment representing the new lower tier.¹ That leaves the top tier and the command structure with about 20 officers. With more than half the unit in the top two pay rates, the Unit is top heavy a fact repeats throughout the comparisons.

A comparison of costs of the proposals over the existing rates shows the following. First the current average hourly rate AHR is \$26.12 and the average annual salary AAS is \$54,107. This is based on 36 officers at 2080 hours using the weighted (ie by census) compensation of the Unit.² For reference, at 2013 rates 1% is \$0.26 per AHR and \$540 per AAS and \$750 is 1.3-1.5%.

Based current weighted cost at 2013 rates 2.110M

Union	Annual	Y2Y*	Employer	Annual	Y2Y*	Variance
3.0%	2.28M	118k	1.25%	2.191M	81k	(37k)
3.0%	2.304M	76k	1.25%	2.227M	36k	(76k)
3.0%	2.373M	69k	1.25%	2.254M	30k	(119k)
Total	6.769M		3.75%	6.672M		(97k)

Key: M (million); k (thousands); (n) negative number; Y2Y (year to year change); Variance (difference between proposals)

The top heavy experience shows in the declining change from the first year where most percentage increase goes to the top 20 while the bottom tier census reduces with attrition on a steady employment scenario. The decreasing variance (negative numbers getting larger) shows the effect in a different form.

The comparison of patrol officer rates within the Youngstown MSA is revealing.

Employer variance to	Youngstown MSA (\$)	25 th % ile	50 th % ile	75 th % ile
Employer (below):	MSA Rates (across):	13.26	18.15	22.86
entry	19.30	NA	1.15	NA
median step (3 yrs.)	22.20	NA	NA	0.66
median years (7 yrs.)	24.13	NA	NA	1.27
top	25.34	NA	NA	2.48

¹ EX 8 rates and census when compared to the expiring CBA rates suggests the 15-17 officers are in steps up to 7 years per the CBA rates not 3 years per EX 8. No testimony explained so the EX 8 will be followed as written. Similarly, the Union maintains the Unit is 39 not 36 and that 9 not 15 are in the bottom tiers with 30 at the top. EX 8 will continue to be followed since the differences are not material to the discussion.

² The command force is not treated separately since percentage adjustment will maintain the differentials already in place. Neither party has put that into contention by any proposals.

To determine whether to increase (and the amount), the existing rates are compared to the MSA data. The differences from percentile to percentile range from 4.70 to 4.90. Any variance larger than that must be disregarded since it places the rate in a completely different percentile quadrant. The Employer's entry rate is clearly in the 50th % ile. The median is at the 75th and the top is a bit above the 75th, estimated at about 87th.

Based on the MSA data what is the expected rates for the top and entry rates? Using the variance (2.48) from the top rate to the 75th % as a benchmark, the entry would be expected to be 2.48 from 50th % ile, or **20.63**. At 19.30 the entry is 1.30 below expectation. On the other hand to maintain the same 1.15 variance from the 75th that the entry has from the 50th, the top rate would be predicted to be 1.15 from the 75th or **24.01**. It is 25.34, over double the 1.15 variance (ie 1.33 off the expectation). The Employer's 2013 rates under compensate the entry by the same amount that it over compensates the top. Some internal adjustment is in order for the lower rates. That is provided in two ways. One is the step adjustments occurring naturally. The underpayment is partly being made up without general increases. The other is a general increase which is clearly in order for the 15-17 younger step officers.

To determine if increase is in order for the entire Unit the external comparisons need to be reviewed. The Employer offered seven comparators (including itself). The Union offered no others. These are cast in terms of the top rate and summarized on the nearby table. The Employer's total compensation based in the top rate compares 5th of the 7. However, all other rankings find the Employer ranks third. The explanation is that the cash compensation in all other comparators has higher, and even much higher, on cash add-ons for longevity and in one case pension. The add on amounts range from lowest \$450 (Austintown) to \$7214 (Jackson -- with 5k in pension) with a median of \$728 (Boardman), 50% more than the Employer.

EMPLOYER	TOTAL COMP* (IN THOUSANDS ROUNDED)	RANK TOTAL COMP	MIN. RATE	RANK MIN RATE	MAX. RATE	RANK MAX RATE	VARIANCE FROM MSA 75 th % ILE OF MAX RATE	VARIANCE FROM MSA 75 th % ILE TOTAL COMP
Boardman	61.8	1	16.00	7	29.38	1	6.52	14.3
Liberty	61.6	2	15.28	8	29.29	2	6.42	14.1
Jackson	61.2	3	23.06	1	25.26	4	2.40	13.7
Perry (Stark)	53.8	4	18.09	6	24.13	5	1.27	6.3
Austintown	53.3	5	19.30	3	25.34	3	2.48	5.8
Beaver	51.0	6	21.69	2	24.17	6	1.31	3.5
MSA 75 th % ile	47.5**	7			22.86	7	0.0	0.0
Howland	46.8	8	18.89	4	22.23	8	(0.63)	(0.70)
MSA 50 th % ile		9	18.15	5	18.15	9	(4.71)	
MSA 25 th % ile		10	13.26	9				

* Based on max. rate; ** MSA AAS calculated at 2080 x 75th % ile.

When compared to MSA data, all comparators but one have top rates above the 75th % ile. Liberty

and Boardman are at sufficient variance to be outliers. A middle group appears to cluster 1.31-2.48 with Austintown the highest.

As noted, when compared on a total compensation basis, the Employer is 5th. The max rate itself would predict the 3rd rank which is Jackson. However, Jackson has such a large add-on compensation that it is an outlier obviously having a unique pension history to achieve that position. Moreover to achieve par with Jackson would entail an annual increase of \$7,900 (3.80/ hr or 15%) which is not appropriate especially on the assumed unique history at play there.

On the other hand there is a \$500 difference on the total compensation basis compared to Perry (Stark). Austintown is closest to Perry (Stark) when the communities are compared in all demographic categories except for the poverty measurers where Perry has more public assistance and lower median income, but close (55k vs 57k). Perry's top rate is (\$1.21) lower but it has a large (3.6k) cash add-on component to the total compensation. The history there appears to have been a rational choice in favor of longevity at the expense of the rates possibly due to demographics. That is the opposite apparent choice made by the Austintown bargaining parties. Since Perry does not have a pension add-on, the comparison on the total compensation basis is appropriate.

These comparisons suggest the Austintown top rate needs adjustment to maintain a clear third rank among the comparators on a total compensation basis. The purpose is not to accommodate the statistics. The purpose of Criteria #2 is to identify the area from which the Employer recruits for the particular job classification in order to pay market competitive rates so it can at least maintain its market leverage among the comparators. This is necessary both for recruitment and retention so entry and top rates must be considered. Austintown has been shown by evidence to be clearly behind on the minimum rate when compared to the MSA 50th % ile and is behind on the top rate based on the total compensation. An increase to both is in order, which is to say a general adjustment.

The amount of the increase must consider Criteria #6, other factors. The Union presented an extremely complete dossier of the potential for growth and development in the community. It is largely un-rebutted. The Employer merely fine tuned some of the conclusions but the trend of the data is clear.

The Union's evidence demonstrated the probabilities for the increasing needs for police service, and the potential improvement of resources to support an increase. The Employer showed the timing is unclear. That means any adjustment must proceed with caution so the community is positioned properly when the timing is ripe.

The most often persuasive "other factor" is internal comparison, that is the recent settlements of the Employer with other bargaining units and the administration of the NBU. The latter were adjusted for one year by 3.0%. The pattern of the other units was affected by the first year lump sum payment of \$750 in each case. Assuming the IAFF is similar in rates to the police, that represents 1.3-1.5% depending on the step. For the non-safety units it represents something more because rates are lower. It is taken to be 1.5-2.0. Based on census for each type unit (ie IBT larger than IAFF) the cost of \$750 on a comparative basis will be assumed to be 1.5. This is added to the 2.0/ year pattern all others agreed to resulting in prior internal comparisons of:

NBU	3.0%	na	na	
Other BU	3.5	2.0	2.0	=7.5%

To achieve parity with the other units the increases for the police Unit should total 7.5 over 3 years. The parties have a TA to omit lump sum payments showing a mutual commitment to rate only increases. The Union proposes 9.0 over three years, which is in excess of parity. The Employer offers 3.75 or 1.25 per year, which below the current monthly reported inflation rate (1.5 -2.0). Another factor to consider is the effective freeze of the past four years. Including the lump sum payment, the effective pay adjustments since 2010 did not keep up with inflation. The commutative rate of inflation from 2010 to 2014 would be 9.3%.³ The pay adjustments amounted to 4.5% on a non-commutative basis. The difference is 4.8%. If made up over three years, it would be about 1.6-1.5⁴ annually. The package would be 3.0% the first year when adding the cost of the lump sum to the lost inflation adjustment. To achieve the 7.5% over three years the out years become 2.25 each. So as to simplify the rates, 2.0 and 2.5 are recommended. The reason is that deferring the mid year fraction to the last year reaches the parity with 7.5% and the compensation for the lost earning power in the prior CBA period but with caution in positioning for the timing of the anticipated changes in the community. This increase will not itself make up the earning power on a fine tuned micro approach. However, the step increases that continue will assist in the project so that the lost period of the prior CBA term would be effectively eliminated by the end of this contract term.

Recommendation: As to No. 1.1 Pay Ranges and Rates, the increase of the compensation in the amount of 7.5% in 3 years overall is recommended by increasing the pay ranges and rates of existing Article 7, Section 1 as effective on April 1, 2013 as follows.

2014	3.0% (retroactive 4/1/2014)
2015	2.0% (4/1/15)
2016	2.5% (4/1/16)

³ <<www.usinflationcalculator.com>>

⁴ It declines due to the compounding effect in the out years.

1.2. Detectives On Call

CONTRACT : Article 7 Compensation , Section 9. Detectives On Call

POSITIONS: The Employer's Proposal : No.

POSITIONS: The Union's Proposal: Increase the accumulated time (AT) from 2.5 hours to 6.0 hours per week.

FACT FINDING :

The CBA provides 2.5 hours accumulated time (AT) for each one week a detective is on call on off duty hours. The AT is a time bank the employee can draw from in the future.

Under the FLSA waiting is not compensable unless it is predominantly for the Employer's benefit. "Standby" time (where the employee is engaged to wait) during all hours outside of the Grievant's regular tour of duty in which he is required to standby are subject to payment. 29 C.F.R. 551.431(a)(2). Thus the distinction of "waiting to be engaged" and "engaged to be waiting" has developed to distinguish the non-compensable from the compensable time. It can be a close call.⁵

To compensate the standby time, thus resolving the potential for close calls, the parties agreed to accumulated time. At 2.5 hours for 40.0 hours standby, the compensation is a premium of 6.25% of the weekly wage (2.5/40)

The comparative evidence shows that of the communities that compensate standby or on call are Boardman and Liberty with 7.0 and 8.0 respectively. That is significantly above the Employer. The Employer is opposed to the Union's proposal which more than doubles On Call compensation. It also notes that several communities do not provide this benefit.

The non-paying communities are not comparable because the bargaining parties here have chosen to adopt this method of compensation. Some increase is in order and 5 hours will be recommended. The premium becomes 12.5%. This bridges the gap so that the parties's CBA will maintain the expected 3rd position discussed in the wages analysis.

Recommendation: As to No. 1.2, Detectives On Call, an increase of the accumulated time (AT) from 2.5 hours to 5.0 hours per week in Art. 7 Sec. 7 is recommended.

⁵ Cf. two pager cases: Engaged to wait (compensable) *Renfro v. City of Emporia*, 729 F.Supp. 757, 29 WH Cases (BNA) 1049, 114 Lab.Cas. P 35, 332, (D. Kansas,1990). Waiting to be engaged (not compensable): *Paniagua v. Galveston, Texas*, 1 WH Cases 2d (BNA) 865 (CA 5 1993).

1.3. Field Training Officers

CONTRACT : Article 7 Compensation, Section ____ Field Training Officer (FTO).

(existing contract ref: Article 19, Miscellaneous, Section 7)

POSITIONS: The Employer's Proposal : Move Field Training Officer (FTO) from Art. 19 Sec. 7 to Art. 7 New Section {11}. No other change.

POSITIONS: The Union's Proposal: Increase FTO compensation from 0.5 hours accumulated time (AT) per 8.0 hours training to 1.0 hours AT per 8.0 hours training.

FACT FINDING :

The CBA provides that the Field Training Officers receive ten hours of A-T each month prorated per the Chief's policy when training other officers. This works out to 0.5 hours per 8.0 hours training. The AT is a time bank the employee can draw from in the future.

The comparative evidence shows that three comparators do not compensate FTOs. The communities that provide compensation are Boardman, Howland and Jackson. They each have a unique formula. Howland and Jackson have a cash payment of \$1.00 and \$0.25 hourly respectively for training. Boardman has 1.0 hour AT per 8.0 FTO duty, equivalent of 20 per month. The Employer at 0.5 per 8.0 hours is half that or 10 hours per month. The two with cash payments report fewer hours, 2.0 and 8.0 hours.

The Employer is opposed to the Union's proposal which doubles FTO compensation.

Some increase is in order compared to Boardman and considering the detective on call premium. An FTO premium of 5.0 hours AT will be recommended. At 1.0 hour per 8.0, the premium becomes 12.5% as is the detective standby compensation.

This textual changes proposed by the Employer are recommended but a re-write is also recommended. The benefit ought not be dependent on the "Chief's policy" which serves only as grist for dispute requiring interpretation. The format of Art. 7 Sec. 9 is preferred.

Recommendation: As to No. 1.3, Field Training Officers, the Union's Proposal is recommended to provide 1.0 hours accumulated time per 8.0 hours training with the Employer's proposal of having Article 19, Miscellaneous, Section 7 on that subject become Article 7, new Section 11 Field Training Officer (FTO) as follows:

Section 11. Field Training Officer (FTO) During days working as field training officers, the officers shall each be provided one hour of A-T for each eight hours of training logged.

1.4. Shift Differential

CONTRACT : Article 7 Compensation, Section ____ Shift Differential

POSITIONS: The Employer's Proposal : No.

POSITIONS: The Union's Proposal: Add shift differential as a premium of 0.50/hr for second shift and 0.75/hr for third shift in a new section.

FACT FINDING :

The Union proposes the new compensation category of shift differential on the basis of the evidence of ill health effects documented in some literature about shift work. The Union provided a sample of studies indicating incidents of a variety of physical conditions that are coincident with shift work, more on the overnight (grave yard) shift.

The Employer is opposed to this new pay category since employees are permitted to bid shifts on a monthly basis. The bidding is supervised by lieutenants who are in the Unit. No literature opposing the Union's argument was presented.

First, the health argument is too complex to be accepted without a fuller record on the subject. Such material presents coincidences, correlations, not proven cause and effect. There are many other factors involved. For example the graveyard shift, supposedly having the worst health outcome correlations, is also the most sought after off-shift and the one most undesirable for employees to leave. The afternoon turns are the most difficult to staff but having less documented health issues.

A factor that ameliorates any concerns of this nature here was cited by the Employer, the very unusual provision for bidding shifts monthly conducted by Unit members. That leaves the discussion as merely another pay category.

The amount proposed by the Union \$0.50/hr - \$0.75/ hr can be represented by the average of \$0.625 assuming equal numbers on each of the two shifts. With 1% wage increase being \$0.26/hr. this is an adjustment of 2.4% for those receiving it. The parties assumed 6 per off-shift (ie 12) which is one third the workforce (36). On a whole package basis with the cost spread over the entire Unit, the shift differential costs 0.8%, roughly an additional percentage with compounding over time and rounding. That amount would too severely skew the finely honed economic package from well justified 3.0-2.0-2.5.

Recommendation: As to No. 1.4, new provision for Shift Differential, it is recommended that there be no change from the existing Agreement which does not provide that category of compensation.

ISSUE: No. 6.0 Duration

CONTRACT : Article 27 Duration, Section 1 Effective Dates
(April 1, 2014 through March 31, 2017)

POSITIONS: The Employer's Proposal : Effective date April 1, 2014 through March 31, 2017.

POSITIONS: The Union's Proposal: Effective date April 1, 2014 through March 31, 2017.

FACT FINDING :

Both parties agreed to this issue in a TA but it is recited here for the ease of reference for the reader.

Recommendation: As to Article 27 Duration, Section 1 Effective Dates the parties' TA is recommended.

Made and entered at Cuyhoga, Ohio
September 5, 2014



Gregory P. Szuter, Fact Finder

PROOF OF SERVICE:

The foregoing has been sent by electronic mail via the internet on September 5, 2014 to both the Fraternal Order of Police Lodge 126 and the Austintown Township in care of their representatives per addresses shown on the cover and filed with the State Employment Relations Board in the same manner.

APPENDIX A

**STATE OF OHIO
STATE EMPLOYMENT RELATIONS BOARD**

In the matter of:	:	Case No:	2014-MED-03-0356
AUSTINTOWN TOWNSHIP,	:		
	:		
Employer,	:		
	:		
and	:		
	:		
AUSTINTOWN FRATERNAL ORDER,	:		
of POLICE, LODGE #126,	:		
	:	To:	Administrator
Employee Organization.	:		Bureau of Mediation

JOINT AGREEMENT TO EXTEND FACT FINDING PERIOD

Pursuant to OAC Rule 4117-09-05(G), the Employer and the Employee Organization mutually agreed to extend the statutory fact-finding timelines in the above-captioned case to allow the issuance of the Fact-Finder's recommendations until and through Monday, September 8, 2014. It is the parties intent to extend fact-finding, but not to create a mutually agreed upon dispute resolution procedure at this time.

Respectfully submitted this 23rd day of June, 2014.

/s/ Matthew B. Baker
Manager of Administrative Practice
Clemans, Nelson & Associates, Inc.
485 Metro Place South, Suite 200
Dublin OH 43017
Phone 614-923-7700
mbaker@clemansnelson.com

CERTIFICATE OF SERVICE

The undersigned hereby certifies that a true and accurate copy of the foregoing Joint Agreement to Extend Fact-Finding Period was served on Attorney Dennis Haines, PO Box 849, City Centre One, 100 Federal Plaza East, Suite 800, Youngstown, OH 44501, dhaines@green-haines.com and Fact-Finder Gregory P. Szuter, 8934 Brecksville Road, #432, Cleveland, OH 44141, gpszuter@gmail.com by electronic mail at approximately 4:00 P.M. all on this 23rd day of June, 2014.

/s/ Matthew B. Baker

APPENDIX B

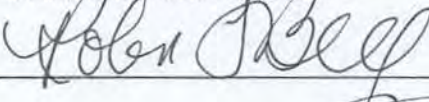
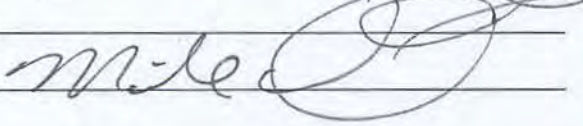
AUSTINTOWN TOWNSHIP
PROPOSALS/COUNTERPROPOSALS
FOP LODGE 126
POSSIBLE TENTATIVE AGREEMENTS PRIOR TO FACT-FINDING
AUGUST 6, 2014

ARTICLE 3
NONDISCRIMINATION

Section 1. Nondiscrimination. Neither the Township, its agents, agencies or officials, nor the Association or its agents, or officers, will *unlawfully* discriminate against any Officer on the basis of age, sex, marital status, race, color, religion, national origin, political affiliation, *disability, ancestry, military status, veteran's status, genetic information*, or for the purpose of evading the spirit of this Agreement. The Township agrees not to interfere with the desire of any sworn police officer to become or remain a member of the Association. The Fraternal Order of Police shall not interfere with any person choosing not to be a member of the Fraternal Order of Police.

Section 2. Gender reference. All references in this Agreement to males shall be construed to be equally applicable to females.

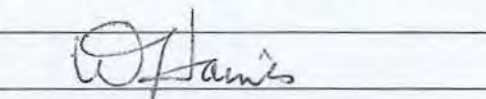
FOR THE TOWNSHIP

8-8-14

DATED

FOR THE UNION

8-8-14

DATED

UNION PROPOSAL NO. 12

Article 7, Compensation, Section 3. Detective Classification, should be amended to provide that Sergeants who enter the Detective classification will not lose their higher rate of pay.

Agreed this 3rd day of Aug, 2014.

FOR THE FOP

Mark Allen

J. Hama

FOR THE TOWNSHIP

Robert Bee

Milo

UNION PROPOSAL NO. 14

Article 9, Call Out Procedure, Section 9 (E), shall be revised to read as follows:

A seniority list of all Officers will be maintained with each Officer giving his/her home telephone and/or cell phone number(s) and a preference in which they are to be called. Answering machine/voice mail will be given a 10 minute window for Officer response.

Agreed this 8th day of August, 2014.

FOR THE FOP

FOR THE TOWNSHIP

Mark R. Haines

D. Haines

AUSTINTOWN TOWNSHIP
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ARTICLE 9
OVERTIME

Section 1. Overtime. Through **Section 8 Time Change.** *Current Contract language.*

Section 9. Call Out Procedure. Should an officer need to be called out to work a shift at overtime pay rate, the following shall apply:

- (1) The Turn Commander, upon being notified of an officer reporting off for his/her duty shift, shall determine if someone is to be called out to fill the turn.
- (2) Should a schedule change be appropriate, the preferred method is taking an officer from one shift to another, without the necessity of overtime. This decision is at the discretion of the turn commander on duty.
- (3) Should an officer need to be called out to work a shift at overtime pay rate the following shall apply:
 - A. Lieutenant or Sergeant replacements.
 1. If a lieutenant or sergeant reports off and it is necessary to replace him/her due to a manpower shortage, and there is a ranking officer remaining on the turn, then a Patrolman shall be called out using the call out procedure for Patrol Officer.
 2. If no ranking officer remains on the turn then attempts are to be made to call out a ranking officer who is scheduled on time off.
 3. If no ranking officer is on time off, a ranking Officer may work a double using seniority in rank as a basis of requesting overtime.
 - B. Patrol officer replacements.
 1. Patrol officers who are on scheduled time off from the assigned shift needing a replacement Officer are to be offered the overtime turn in order of department seniority. If this method fails, then supervisors (Lieutenants or Sergeants) who are on scheduled time off of the assigned shift needing a replacement officer are to be offered the overtime turn in order of department seniority.
 2. Should a replacement officer still be needed, then other Patrol Officers who are scheduled on time off are to be offered this overtime in order of department seniority, providing it does not involve a double shift. If this method fails, the supervisors (Lieutenants or Sergeants) who are scheduled

AUSTINTOWN TOWNSHIP
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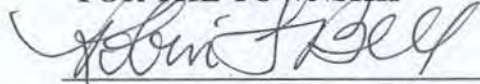
POSSIBLE TENTATIVE AGREEMENTS PRIOR TO FACT-FINDING

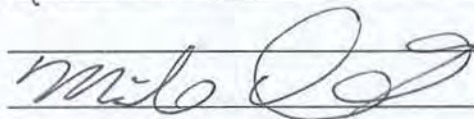
AUGUST 6, 2014

on time off are to be offered this overtime in order of department seniority, providing it does not involve a double shift.

3. The next step would be to allow a Patrol officer who is presently working, to work a double shift going by department seniority. If this method fails then a supervisor who is presently working works a double shift going by department seniority.
 4. As a last resort a patrol officer who is scheduled on the preceding shift may be called out to work by department seniority. If this method fails then a supervisor who is scheduled on the preceding shift may be called out to work by department seniority.
- C. All turns shall have a turn commander of the rank of Sergeant or above. If none are available a Sergeant, Lieutenant or Chief of Police can designate a senior Patrolman to be in charge of the turn.
- D. The turn commander will have the authority to call out additional personnel should it become necessary to maintain law and order.
- E. A seniority list of all Officers will be posted with each officer giving his/her home telephone number to call and/or a ~~pager-cell phone~~ number(s) to call ~~if no answer at home and indicating the preferred number to be call~~. Answering machines ~~and voice mail~~ will be given ten (10) minutes for officer response. ~~paggers will be given five (5) minutes response to call back.~~
- F. A log shall be kept of times an officer is called for overtime.
- G. Relief available under this section shall be limited to the right of the aggrieved Officer to be elevated to the top of the overtime call-out list for a call-out for which he agrees to work.

FOR THE TOWNSHIP



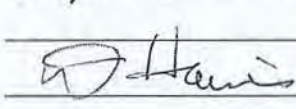


8/8/2014

DATED

FOR THE UNION





8/8/2014

DATED

AUSTINTOWN TOWNSHIP
FACT-FINDING PROPOSALS
FOP LODGE 126
SERB CASE 2014-03-0356
AUGUST 8, 2014

ARTICLE 11
INSURANCE

Section 1. Medical Insurance. The Employer shall provide coverage to all full-time bargaining unit members represented by FOP comprehensive major medical/hospitalization health care insurance and ancillary coverage pursuant to the plan selected by the insurance committee under this article. The applicable plan offering(s) shall be reduced to writing and appended to the agreement as Appendix A. The eligible employee may select coverage (i.e., single, two-party, family, etc.) subject to the plan offerings.

Section 2. Contribution Rates for Township Coverage. The parties shall continue to contribute to insurance in the same manner as was being done on December 31, 2009, until July 1, 2011. Effective July 1, 2011, the parties shall contribute the following amounts toward the monthly premiums for health care and ancillary coverage (e.g. dental, visions, etc.) provided by the Austintown Township Board of Trustees as follows:

<u>PPO Plan Coverage</u>	<u>Employer</u>	<u>Employee</u>	<u>Total Base Contribution</u>
Single Contribution	\$ 379.80	\$ 42.20	\$ 422.00
Employee/Child(ren)	\$ 694.80	\$ 77.20	\$ 772.00
Employee/Spouse	\$ 795.60	\$ 88.40	\$ 844.00
Family Contribution	\$ 1,120.50	\$124.50	\$1,245.00

<u>HSA Plan Coverage</u>	<u>Employer</u>	<u>Employee</u>	<u>Total Base Contribution</u>
Single Contribution	\$294.30 292.55	\$32.70 32.51	\$327.00 325.00
Employee/Child(ren)	\$541.80 538.44	\$60.20 59.83	\$602.00 598.27
Employee/Spouse	\$588.60 586.08	\$65.40 65.12	\$654.00 651.20
Family Contribution	\$868.50 862.96	\$96.50 95.89	\$965.00 958.85

Should the plan costs exceed the total base contribution amounts set forth above, the participating employee shall be required to contribute fifty percent (50%) of the amount in excess of the total in order to continue participation.

Section 3. Township HSA Contributions. The Township will establish an HSA account for each bargaining unit member covered by its HSA plan and contribute the following annual amounts to each member's respective account based upon the applicable coverage:

	<u>Annual Contribution Amount</u>	
	<u>\$2,000/\$4,000 Plan</u>	<u>\$4,000/\$8,000 Plan</u>
Single Coverage	\$1400.00	\$1730
Employee/Child(ren) Coverage	\$2800.00	\$3460
Employee/Spouse Coverage	\$2800.00	\$3460
Family Coverage	\$2800.00	\$3460

**AUSTINTOWN TOWNSHIP
FACT-FINDING PROPOSALS
FOP LODGE 126
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AUGUST 8, 2014**

ARTICLE 11, INSURANCE (continued)

Annual contributions shall be credited to the Employee's HSA account effective January 1 of each year. Any employee that separates from service with the Employer during the course of the year shall have his annual contribution prorated on a monthly basis so that any overpayment amount is deducted from the employee's final severance check. Employees may elect to supplement the above Township contribution, subject to the IRS maximum limits, through the execution of a pre-tax payroll deduction form.

Section 4. Carrier Changes for Township Coverage. If, during the life of this agreement, it becomes necessary for the Employer to change carriers, the Employer agrees to provide notice to the Union through the Insurance Committee in advance of such action.

Section 5. Insurance Committee/Insurance Changes for Township Coverage. The Union agrees that the Employer shall create and maintain an insurance committee for the purpose of studying and recommending cost containment programs for medical and prescription coverage, reviewing usage, and recommending benefit levels. Once created, the Union agrees to participate in the committee. The committee shall consist of one (1) representative from each of the Township bargaining units having members receiving insurance benefits through the Township insurance plan, one (1) or two (2) representative of the Board/designee, whichever is needed for an odd number, and one (1) representative of the Township Clerk/designee. The insurance committee shall have the authority to approve program coverage changes, recommend alterations to benefit levels, and/or recommend adjustments to coverage levels through majority vote.

The Committee may recommend any of the following options:

- A. To keep the same plan and pass on any cost increase above the levels set forth in Section 2 of this article to the parties; or
- B. To change the plan and alter the benefit levels so that there is no increase in the cost of the plan; or
- C. To change the plan and alter the benefit levels and, if there is an increase in the cost of the plan above the levels set forth in Section 2 of this article, pass that increase along to the parties.

Section 6. Committee Recommendations for Township Coverage. Recommendations of the committee cannot be unilaterally changed by the Township. Recommendations of the committee, and Employer actions to carry out those recommendations, are final and binding on all parties involved and shall not be subject to the grievance procedure or any other avenue of appeal. If, however, the committee makes no recommendation by June 1 or thirty (30) days prior to renewal for the following plan year, the Township may unilaterally adjust the benefit levels if required to stay within the costs set forth in Section 3. If the committee is going to recommend

AUSTINTOWN TOWNSHIP
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ARTICLE 11, INSURANCE (continued)

that the Township go out for bid for the following year, the committee must provide the Township with the necessary information by April 1 preceding the plan year for which bids are taken.

Section 7. Opt Out. An employee may elect to "opt-out" of the Township's healthcare plan. The employee is eligible to receive one hundred dollars (\$100.00) per month, minus taxes, to be paid biweekly. Proof of other insurance must be submitted to the Township.

Section 8. Employee Costs. Employees shall contribute pre-tax dollars towards the cost of their hospitalization, vision and dental group insurance.

Section 9. Life Insurance. The Township shall provide and maintain in force, by payment of the necessary premiums, life insurance in the amount of fifty thousand dollars (\$50,000.00) for all employees during the term of this Agreement.

Section 10. Retiree Life Insurance. Retired officers are eligible for inclusion in the Township's group life insurance coverage if such inclusion is allowed by law and if the actual additional cost to the Township, as the result of the retired officer's inclusion in the group, is calculated by the life insurer or other actuary and the retired officer reimburses the township for this actual additional cost. The "actual additional cost to the Township" is not the per employee rate charged to the township by the life insurer.

Section 11. Dental Insurance Opt-Out. Upon the effective date of this Agreement, all Officers may elect to receive a lump sum payment of \$155.00 in the first pay period of December of each year or elect to receive continued coverage as described above. Any Officer selecting a lump sum payment shall not be permitted to reenter the plan for the duration of this Agreement. Any officer electing to receive dental insurance must remain in the plan for the duration of this Agreement.

Section 12. Coverage Continuation Options for Township Coverage.

- A. Your individual and your family coverage terminates on your last day of work when you cease to be an employee of the Township. When you cease work because of a leave of absence, your individual and your family coverage terminates on the last day of the month in which you last worked. You have the privilege of continuing your Medical Insurance coverage for the number of months prescribed by law if the full premium payment is made in advance to the Township. You have thirty-one (31) days from the end of the continuation period to convert to an individual policy with the insurance company. Coverage is strictly between the insurance company and the former employee.
- B. If you cease work because of layoff, the following provisions will be applicable to your coverage under the benefit programs. Your individual and your family Medical

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ARTICLE 11, INSURANCE (continued)

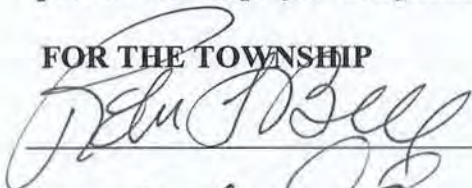
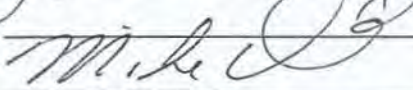
Insurance will be continued during such layoff up to a maximum of 6 months from the end of the month in which you last worked. If you have not returned to work at the end of such period, your individual or your family medical coverage terminates subject to the "Continuation" and "Conversion Privilege" described above.

- C. If you cease work because of a non-occupational disability, your individual and your family medical insurance will be continued during absence due to such disability up to a maximum of three (3) months from the end of the month in which you last worked.
- D. If you cease work because of occupational disability your individual or your family medical insurance will be continued during absence due to such disability, up to a maximum of 12 months from the end of the month in which you last worked but in no event more than the end of the month for which statutory compensation payments terminate.
- E. If you return to work following an absence on account of layoff, leave of absence, or disability during which your coverage under the insurance programs shall have terminated, all your coverage under the insurance programs will be reinstated on the date you return to work.

Section 13. Refractive or Laser Eye Surgery. *The Township will pay the necessary costs for refractive or laser eye surgery only to officers to the extent not covered by insurance benefits and only up to an amount equivalent to the discounted cost pursuant to any discounts offered by the Township's insurance provider. Refractive or Laser Eye Surgery will not be provided to family members unless it is covered by Township insurance.*

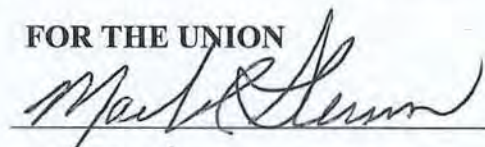
Section 14. *The parties recognize that employee affordability under the Affordable Care Act (ACA) will be measured based upon the cost of the single-only coverage and the employee's household income (as defined by rules and regulations implementing the ACA). Any employee who believes his contribution exceeds 9.5% of his household income for the lowest level single-only coverage plan offered by the Employer should submit a written request for review to the Fiscal Officer. Should an employee request a review the employee agrees to provide the Employer with financial documentation of the employee's household income.*

FOR THE TOWNSHIP

8 Aug 2014
DATED

FOR THE UNION




8-8-14
DATED

**AUSTINTOWN TOWNSHIP
PROPOSALS/COUNTERPROPOSALS
FOP LODGE 126
POSSIBLE TENTATIVE AGREEMENTS PRIOR TO FACT-FINDING
AUGUST 6, 2014**

**ARTICLE 13
HOLIDAY**

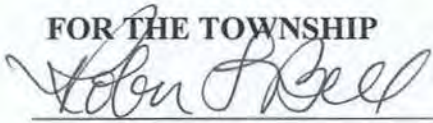
Section 1. Holidays. ~~All holidays provided to Officers under Ohio law are designated as paid holidays for all Officers.~~ Full-time bargaining unit members are entitled to receive eight (8) hours of pay (i.e., holiday pay) for the following recognized holidays:

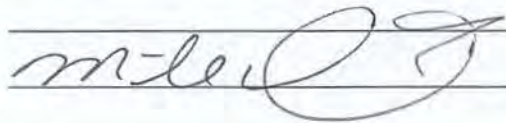
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| 1. New Years Day | 1st Day in January |
| 2. Martin Luther King Day | 3rd Monday in January |
| 3. Presidents Day | 3rd Monday in February |
| 4. Memorial Day | Last Monday in May |
| 5. Independence Day | 4th Day of July |
| 6. Labor Day | 1st Monday in September |
| 7. Columbus Day | 2nd Monday in October |
| 8. Veterans Day | 11th Day of November |
| 9. Thanksgiving Day | 4th Thursday in November |
| 10. <i>Christmas Eve Day</i> | <i>24th of December</i> |
| 11. Christmas Day | 25th of December |

Holiday pay shall be paid on the basis of the hourly pay rates provided in Article 7.

Section 2. Holiday Compensation. In addition to holiday pay if an Officer works on a paid holiday, said Officer shall be paid for all hours worked at the rate of one and one-half (1-1/2) times his or her regular hourly base rate. In order to be eligible for holiday pay, an Officer must work his or her scheduled day before and his or her scheduled day after the holiday, unless, however, the Officer furnishes satisfactory medical proof to the Chief of Police that he/she was unable to work such days.

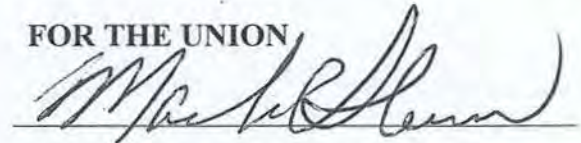
FOR THE TOWNSHIP





8/8/14
DATED

FOR THE UNION





8-8-2014
DATED

AUSTINTOWN TOWNSHIP
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ARTICLE 14
VACATIONS

Section 1. Entitlement. The vacation schedule shall be as follows:

<u>Completed Years of Service</u>	<u>Paid Days Off</u>	<u>Hours</u>
Less than one (1) year	0	0
One (1) to six (6) years	10 (two weeks)	80 hours
Seven (7) to twelve (12) years	15 (three weeks)	120 hours
Thirteen (13) to nineteen (19) years	20 (four weeks)	160 hours
Twenty (20) years or more	25 (five weeks)	200 hours

Vacation is credited each bi-weekly pay period for each hour of actual paid time or 2080 hours, which ever is less, at the rates set forth below

<u>Annual Vacation Entitled To</u>	<u>Credited for Pay Period</u>
80 hours	.0385 per hour of actual paid time
120 hours	.0577 per hour of actual paid time
160 hours	.0769 per hour of actual paid time
200 hours	.0962 per hour of actual paid time

Section 2. Taking Vacation Leave. Officers may take vacation leave to which they are entitled beginning the first full pay period following the date they complete the required years of service.

Vacation anniversary dates shall be established for each full-time officer hired prior to September 1, 2014, in accordance with his credited OPERS time. Effective September 1, 2014, years of active service shall be based on all credited OPERS time and shall also include all service time as is mandated under state law for all officers hired from the Township's Auxiliary Reserve unit. Officers hired from outside the Township's Auxiliary Reserve unit shall only receive years of Vacation credit for years of service with Austintown Township and will not receive Vacation service credit based on their any OPERS credited time with any other public employer.

Section 3. Unused Vacation Time. Unused accumulated vacation time ~~prorated to the date of separation~~ will be paid at the time of such separation to any Officer who leaves the employ of the Department for any reason or is laid off. Unused accumulated vacation time will be paid to the surviving spouse, *a surviving child who is eighteen (18) years of age or older, or a surviving parent in accordance with Ohio Revised Code section 2113.04* or the estate of any employee who dies ~~prorated to the date of his or her death~~. Any Officer who transfers to another agency within the Township shall also have transferred to his credit any unused accumulated vacation time.

AUSTINTOWN TOWNSHIP
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FOP LODGE 126
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AUGUST 8, 2014

ARTICLE 14, VACATION (continued)

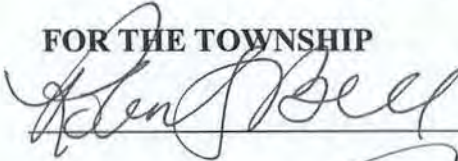
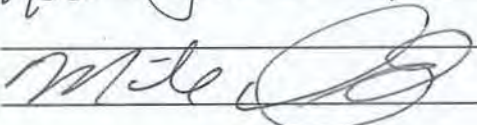
Section 4. Vacation Pay. Vacation pay will be computed at the appropriate rate earned by the Officer at the time vacation is actually taken.

Section 5. ~~Prior Unused Vacation Time.~~ After twenty (20) years of service an officer may convert up to two (2) weeks (80 hours) of vacation leave to cash or wages for a maximum of three (3) years. Otherwise, vacation time must be taken in the year of entitlement unless otherwise agreed upon by the Chief of Police. **Conversion One Week Vacation Leave.** An employee may submit in writing no later than December 1 of each year a request to convert to pay up to one (1) week of vacation time (five [5] days). The principal of Last in First out applies. The vacation time converted shall be that which is earned during the calendar year and not taken and shall be paid to the employee by January 30 of the following year. The maximum amount of converted vacation time that can be considered earnable salary under OPERS regulations is the amount the employee earns in the calendar year, less any amounts taken during the calendar year.

Section 6. Single Vacation Days. Vacation time up to two (2) weeks (10 working days) may be taken one day at a time upon approval of the Chief of Police and obtained seventy-two (72) hours in advance.

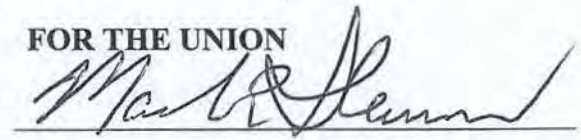
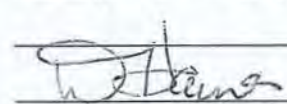
Section 7. Vacation Carryover. Vacation leave shall be taken by an employee between the year in which it was accrued and the next vacation anniversary date. Up to one (1) week of vacation time may be carried over for use prior to the following vacation anniversary date.

FOR THE TOWNSHIP

8/8/14
DATED

FOR THE UNION

8-8-14
DATED

AUSTINTOWN TOWNSHIP
FACT-FINDING PROPOSALS
FOP LODGE 126
SERB CASE 2014-03-0356
AUGUST 8, 2014

Section 6. Personal Days. Each officer shall be permitted two (2) Personal Days per year and unused personal days shall carryover into the next year.

Section 7. Donation of Sick Leave. An officer is permitted to donate sick leave to an officer in need up to a maximum of ten (10) days per year provided the donating Officer has exhausted his A-T bank.

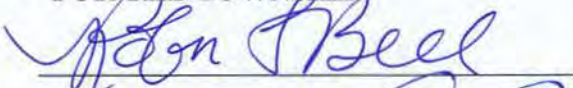
Section 8. Bereavement Leave.

- A. *In the event of a death of the employee's spouse, parent, child, stepchild residing or having had resided in household, grandparent, grandchild, mother or father-in-law, brother or sister, person who stood in the place of a parent (in loco parentis) when the employee was a child, the employee shall receive paid bereavement leave of up to three (3) consecutive calendar days, one of which must include the day of the funeral, without using sick leave. Additional leave may be requested under section B.*
- B. **Request for Additional Days.** *If the death or funeral occurs beyond thirty (30) miles from the employee's home, or the employee is the guardian of the person identified in section A, the employee may request an increase to five (5) days, with the additional days deducted from the employee's sick leave, upon the approval of the Department Head. Additional bereavement days may be taken if the burial/cremation is delayed beyond the decedent's family's control.*

In the event of the death of a brother-in-law, sister-in-law, aunt, or uncle, the employee may request to utilize up to three (3) days of sick leave for bereavement leave.

Such additional days will be deducted from the employee's accumulated sick leave and will not count against attendance incentive or performance evaluation.

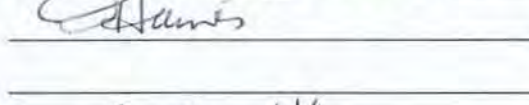
FOR THE TOWNSHIP



8-8-14

DATED

FOR THE UNION



8-8-14

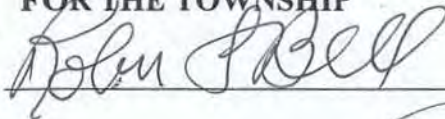
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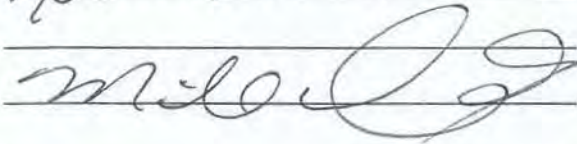
AUSTINTOWN TOWNSHIP
PROPOSALS/COUNTERPROPOSALS
FOP LODGE 126
POSSIBLE TENTATIVE AGREEMENTS PRIOR TO FACT-FINDING
AUGUST 6, 2014

ARTICLE 27
DURATION

Section 1. Effective Dates. Except where specifically provided otherwise in the Agreement, this Agreement shall be effective April 1, 2011, _____, 2014 and shall continue in full force and effect until March 31, 2014 2017. ~~Negotiations for a new collective bargaining agreement shall begin between the parties no later than November 1, 2013.~~

FOR THE TOWNSHIP



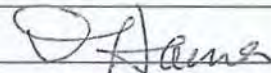


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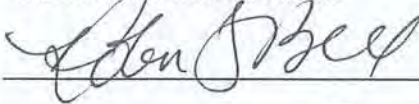
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 AUGUST 6, 2014

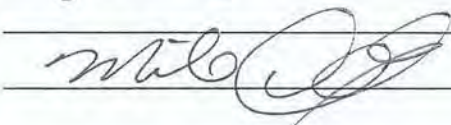
SIDE LETTER #1
WAGE SCHEDULE ADMINISTRATION

~~Section 1. All patrolman hired prior to April 1, 2011 shall continue on the below wage scale until reaching the After 3 year patrolman rate. At that time they shall be transferred over to Step 7 of the Patrolman Wage Scale identified in Article 7, Compensation. The wage schedule prior to transfer is listed below:~~

<u>Classification</u>	<u>Service Time</u>	<u>Rate of Pay</u>
Patrolman	0-1 Year	\$21.71
Patrolman	1-3 Years	\$22.93
Patrolman	After 3 Years Completed	\$24.13

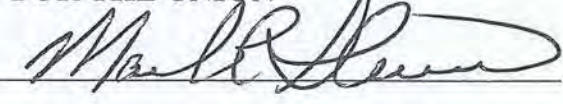
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PROPOSALS/COUNTERPROPOSALS
FOP LODGE 126
POSSIBLE TENTATIVE AGREEMENTS PRIOR TO FACT-FINDING
AUGUST 6, 2014

SIDE LETTER #3
LUMP SUM COMPENSATION

~~In lieu of general wage increases, the parties agree that current bargaining unit members shall receive annual lump sum payments in the amount of seven hundred fifty dollars (\$750.00) for each year of the Agreement. Payments shall be made in the first pay period in December for each year of the Agreement. A member that retires during a calendar year who has worked less than six (6) month will receive three hundred seventy five dollars (\$375.00) for that year. If a member works more than six (6) months the full amount shall be given.~~

FOR THE TOWNSHIP

John L. Bell

FOR THE UNION

Mark R. Hume

G. Jones

8/8/14

DATED

8-8-14

DATED

AUSTINTOWN TOWNSHIP
PROPOSALS/COUNTERPROPOSALS
FOP LODGE 126
POSSIBLE TENTATIVE AGREEMENTS PRIOR TO FACT-FINDING
AUGUST 6, 2014

SIDE LETTER #4
2011 HSA CONTRIBUTION AMOUNTS

~~**Section 1. HSA Contributions.** For the year 2011 only, the HSA contribution for members enrolling in the plan for the first time effective 7/1/2011 shall be half of the amount listed in the insurance article of the parties' Agreement. For subsequent years the contributions shall be according to the parties' Agreement.~~

~~**Section 2. Limited Self Insurance for 2011.** In order to bridge the funding gap between the prorated amount for 2011 funding as provided for in Section 1, the parties agree as follows:~~

~~a. **Single Plan Members.** After a single member enrolling in the HSA for the first time effective 7/1/2011 has incurred costs in excess of eight hundred fifty dollars (\$700 + \$150 premium credit = \$850.00), the township shall self insure the next five hundred and fifty dollars in actual costs incurred. (\$850 EE obligation + \$550 Township Self-Insured Amount = \$1,400.00)~~

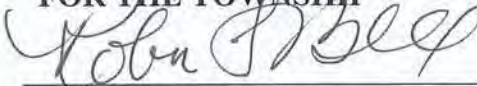
~~b. **Other Plan Members.** After a member enrolling in the HSA for the first time effective 7/1/2011 has incurred costs in excess of one thousand seven hundred dollars (\$1,400 + \$300 premium credit = \$1,700.00), the township shall self insure the next one thousand one hundred dollars in actual costs incurred. (\$1,700 EE obligation + \$1,100 Township Self-Insured Amount = \$2,800.00)~~

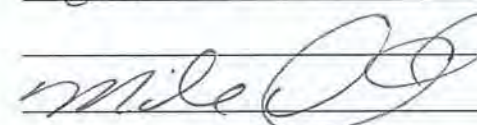
~~**Section 3. Costs/Documentation.** Costs in excess of the funding amount (i.e. \$1,400/\$2,800) are the employee's responsibility in accordance with the applicable plan. All expenditures submitted for self-insurance reimbursement must be eligible for HSA expenditure in order to qualify. Further, all expenditures submitted for reimbursement must be properly documented in order to qualify for self-insurance reimbursement. Any monies paid under this side letter shall be done as an additional HSA contribution.~~

~~**Section 4. Expiration.** This side letter shall only apply to the 2011 year and shall expire 12/31/2011.~~

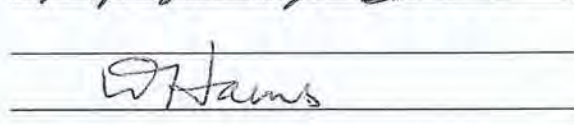
FOR THE TOWNSHIP

FOR THE UNION









8-8-14
DATED

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DATED

**AUSTINTOWN TOWNSHIP
FACT-FINDING PROPOSALS
FOP LODGE 126
SERB CASE 2014-03-0356
AUGUST 8, 2014**

**SIDE LETTER #__
VACATION BALANCES**

Any individual who currently carries a vacation balance greater than permitted pursuant to Article 14 as the result of the resolution of the grievance regarding service time credit shall be permitted to carry and use those balances through and until their vacation anniversary date in calendar year 2017.

UNION PROPOSAL NO. 15

All references to Auxiliary Officer in the Agreement should be changed to Reserve Officer.

Agreed this 8th day of Aug, 2014.

FOR THE FOP

Mark Deane
Officer

FOR THE TOWNSHIP

John P. Keef
Mayor